

CEDAR RETAIL PROCUREMENT PORTFOLIO

BlueHarbor Managed Cloud Hosting Order Form

EXECUTED

Agreement ID	IT-002
Category	it_software
Customer	Cedar Retail Pvt Ltd (40-store retailer)
Provider	BlueHarbor Cloud Services India Pvt Ltd
Effective date	2024-07-15
Original document status	executed

Fictional development fixture

This agreement is synthetic data prepared for contract-processing development and testing. It does not represent a real transaction. Names, dates, prices, and signatures are fictional. Where the agreement is marked unsigned, the document records a proposal or draft only.

Document purpose

The parties set out the commercial, operational, and legal terms for the services described below. Fixed fees, optional charges, service levels, and the execution record are stated in the schedules that follow. All monetary amounts are in Indian rupees and exclude GST unless expressly stated otherwise.

02 Parties, definitions, and scope

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Parties

Cedar Retail Pvt Ltd ("Cedar"), a retailer operating 40 stores, appoints BlueHarbor Cloud Services India Pvt Ltd ("Provider") for the limited purpose of delivering the services in this agreement. Each party is responsible for its own personnel and subcontractors.

Definitions

"Business Day" means a day on which banks are open in Mumbai. "Confidential Information" means non-public commercial, technical, personal, or security information disclosed for the engagement. "GST" means goods and services tax chargeable under applicable law and is excluded from every amount stated unless expressly included. "Change Order" means a written change signed by both parties. "Service Levels" are the measurable commitments in section 5.

Commercial scope

Managed production and disaster-recovery hosting for Cedar's commerce, analytics, and order services, including monitoring and backups.

Provider will maintain a named service manager, keep records needed for invoice verification, and promptly disclose any material dependency or assumption. Cedar will provide reasonable access, timely decisions, and accurate data needed for the agreed scope. Work outside the scope requires the change-control process on page 7.

Exclusions and acceptance

The stated scope does not include unlisted integrations, travel, taxes, third-party costs, or additional capacity unless the relevant schedule expressly includes them. A deliverable is accepted when Cedar confirms acceptance in writing or does not identify a material non-conformity within ten Business Days of delivery, subject to the acceptance gates in the applicable schedule.

03 Term, renewal, and notice

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Term field	Agreement position
Effective date	2024-07-15
Expiration date	2026-10-31
Renewal	annual_renewal
Non-renewal notice	At least 60 calendar days before expiry

Renewal mechanics

The parties may renew for a further annual term. Unless a written renewal is signed, the agreement ends at the stated expiry. Either party may give written non-renewal notice at least the stated number of calendar days before expiry.

Term conflict rule

A signed amendment expressly changing the term or fee schedule controls over an inconsistent base clause. A proposal, draft, or unsigned schedule cannot extend a term or create a binding obligation.

04 Fees and payment

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Commercial model

annual reserved capacity plus metered usage

Fixed charges for stated term	Value (INR, ex GST)
Total fixed charges	INR 7,800,000.00
GST	Excluded; charged separately when applicable

Annual or scheduled fees

Period	Annual fee (INR, ex GST)
2024-07-15 to 2025-07-14	INR 3,600,000.00
2025-07-15 to 2026-10-31	INR 4,200,000.00

Optional and variable charges

Charge	Rate / basis
Burst compute, storage overage, egress and managed database consumption	provider rate card; metered monthly; no fixed total

Price escalation

7% annual reserved-capacity uplift; metered services follow published rate card

The total fixed charges above include only the amounts expressly listed for the stated term. Usage, optional, pass-through, overage, and at-cost items are not converted into fixed totals or implied commitments.

Invoice and payment

Reserved capacity billed monthly in advance; usage billed monthly in arrears; 30-day payment term; GST extra.

05 Delivery, service levels, privacy, and security

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Service levels

Commitment	Measure / remedy
SLA 1	99.9% monthly availability for production region
SLA 2	Critical incident response in 15 minutes
SLA 3	Daily backup with 35-day retention

Operational governance

The Provider will maintain incident, request, change, and access records; attend a monthly operational review when requested; and provide a service report covering availability, incidents, root-cause actions, capacity, and open risks. Cedar may audit reasonable supporting records on ten Business Days' notice, subject to confidentiality and security controls.

Privacy and security

Provider may process Cedar data only to perform this agreement and only on documented instructions. Provider will apply least-privilege access, multi-factor authentication for administrative access, encryption in transit and at rest where supported, secure deletion at exit, and annual security training. A suspected personal-data incident must be reported without undue delay and with an initial update within 24 hours. Provider will assist with access, correction, deletion, and regulatory requests to the extent applicable.

Business continuity

Provider will maintain a business-continuity plan proportionate to the services, test it at least annually, and share a summary of material findings. Subcontractors remain Provider's responsibility and must meet equivalent confidentiality, security, and service commitments.

06 Confidentiality, liability, and termination

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Confidentiality

Each party will protect the other party's Confidential Information using at least reasonable care, disclose it only to personnel and advisers who need it and are bound by confidentiality, and use it only for this agreement. These duties survive for five years after expiry; trade secrets remain protected while they qualify as trade secrets. Required legal disclosure is permitted with notice where lawful.

Intellectual property

Each party keeps its pre-existing materials. Cedar owns its data and Cedar-specific reports and deliverables after payment. Provider retains its tools, methods, templates, and general know-how, granting Cedar a perpetual, non-exclusive licence to use them as embedded in the deliverables for Cedar's internal business.

Indemnity and liability

Provider will defend Cedar against third-party claims that the services infringe intellectual-property rights, and against Provider's breach of confidentiality or applicable data-protection obligations, subject to prompt notice and control of defence. Except for unpaid fees, fraud, wilful misconduct, death or personal injury, confidentiality breach, data-protection breach, and indemnity obligations, each party's aggregate liability is capped at the fixed fees paid or payable in the twelve months before the event. Neither party is liable for indirect or consequential loss; direct restoration costs remain recoverable.

Termination

Either party may terminate for material breach not cured within 30 days after written notice, insolvency, or repeated critical service failure. Cedar may terminate for convenience on 60 days' written notice unless the order form says otherwise. On exit, Provider will return or securely delete Cedar data, provide transition assistance at the agreed rates, and refund prepaid fees for undelivered services. Accrued payment, confidentiality, IP, liability, audit, and exit duties survive.

07 Change control, precedence, and amendments

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Change control

A requested change must state the business reason, scope, deliverables, assumptions, price, resource impact, service-level effect, data/security impact, and revised dates. Provider may not start chargeable changed work without a signed Change Order. Emergency security changes may be implemented to protect systems and then documented within two Business Days.

Precedence

For an inconsistency, the order of precedence is: (1) a later signed amendment, (2) the signed statement of work or order form, (3) this master agreement, and (4) an approved proposal. A document that is unsigned or marked draft does not override an executed term. Commercial schedules control only for the service and period they expressly cover.

Amendments bundled in this PDF

Amendment	Date	Effect / precedence
A1	2025-12-20	Raised reserved capacity from INR 3,600,000 to INR 4,200,000 per year and added a disaster-recovery region. Signed amendment controls the order form.

Records and notices

Notices must identify the agreement ID and be sent to the contract contacts recorded in the procurement system by email and a traceable delivery method. The parties will retain invoices, approvals, service reports, amendments, and acceptance evidence for at least seven years or the longer period required by law.

Contract administration

Each party will keep the signed agreement, amendments, change orders, invoices, service reports, and acceptance records in its contract file. A later signed amendment controls only the provisions it expressly changes; all other provisions continue in force.

08 Signature and execution record

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Execution status

This page records whether authorized representatives executed the agreement. It is not a real signature page and contains no real-person names or signatures.

Party	Execution record	Date
Cedar Retail Pvt Ltd	Authorized signatory (name withheld) - electronic execution marker	2024-07-15
BlueHarbor Cloud Services India Pvt Ltd	Authorized signatory (name withheld) - electronic execution marker	2024-07-15

No real-person signatures

The labels above are synthetic execution markers. They do not identify, reproduce, or represent any actual person. Unsigned documents are deliberately retained so downstream processing can detect missing execution evidence.

Execution completeness

The execution record is included so the parties can determine whether this document is binding. No person is named or represented. Any unsigned draft remains subject to approval and does not create a payment obligation until authorized execution.